

22STCV13449 22STCV13449

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 22STCV13449 Hearing Date: June 29, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 29, 2026

Case Name: Hennig, Kramer, Ruiz & Singh, LLP v. Seretan, et al.

Case No.: 22STCV13449

Matter: Motion to Vacate Judgment

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an action in which Plaintiff Hennig, Kramer, Ruiz & Singh, LLP, Defendant Wendy Seretan's former attorney, claims that Defendant failed to compensate Plaintiff after Plaintiff was able to settle Defendant's case. On April 22, 2022, Plaintiff filed the operative Complaint asserting claims for (1) breach of contract, (2) breach of the implied covenant of good faith and fair dealing, (3) conversion, (4) quantum meruit, and (5) unjust enrichment.

On March 5, 2026, after a bench trial, the Court found "in favor of plaintiff as alleged in the complaint. Plaintiff is entitled to the lien amount of \$135,806.67. Plaintiff is entitled to the costs of the suit."

Defendant now seeks to vacate the judgment under CCP § 663.

A judgment may be set aside and a new judgment entered may also be set aside pursuant to CCP § 663. "A judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment: 1. Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected. 2. A judgment or decree not consistent with or not supported by the special verdict." (CCP §663.)

The motion to vacate under CCP section 663 must be denied because it fails to establish an erroneous legal basis for the decision, which is the narrow statutory limit of the motion. First, the final judgment did not improperly expand upon the trial's brief minute order—rather, its streamlined language was explicitly mandated by the Court in response to Defendant's own procedural objections. Because the trial lasted less than eight hours, no formal statement of decision was required, and the doctrine of implied findings presumes the Court made all necessary factual findings to support its ultimate ruling.

Second, Defendant's procedural challenge to the pre-trial bifurcation order is not a cognizable ground for relief under section 663. Under well-settled California law, a trial court may properly elect to try equitable claims—like quantum meruit—first without a jury. When the court's equitable determination proves dispositive of the entire dispute, a jury trial on the remaining claims is rendered unnecessary. While Defendant has preserved this issue for direct appeal, it cannot be used as a vehicle to vacate the judgment.

Finally, the quantum meruit award of \$135,806.67 is legally sound and not capped by the potential layout of the abandoned contingency contract. Quantum meruit measures the objective, reasonable value of the services actually performed. Because the trial evidence demonstrated that Plaintiff's attorneys performed more than 452 hours of documented work valued at over \$271,000, limiting the recovery to the escrowed lien amount was a proper exercise of equitable discretion well below the proven market value of the services rendered.

The Motion is denied.

Moving party to give notice.